

Multiple Choice (10 marks)

1. In which of the following the idea of 'natural law' first appeared
 - (a) French Revolution
 - (b) American War of Independence
 - (c) Roman Law
 - (d) Greek Thinking
2. Which one of the following doctrines is not associated with Natural Law thinking
 - (a) Doctrine of substituted security
 - (b) Doctrine of due process
 - (c) Doctrine of bias
 - (d) Doctrine of reasonableness
3. Why does Parfit oppose equality?
 - (a) He argues than an unequal society is inevitable.
 - (b) He claims that by giving priority to the needs of the poor, we can increase equality.
 - (c) He asserts that we are each responsible for our poverty.
 - (d) He rejects the idea of equality altogether.
4. Who amongst the following said that jurisprudence is the philosophy of positive law
 - (a) Gray
 - (b) Holland
 - (c) Hart
 - (d) Austin
5. Which of the following criticisms of Llewellyn's distinction between the grand and formal styles of legal reasoning is the most compelling?
 - (a) There is no distinction between the two forms of legal reasoning.
 - (b) Judges are appointed to interpret the law, not to make it.
 - (c) It is misleading to pigeon-hole judges in this way.
 - (d) Judicial reasoning is always formal.

True / False (10 marks)

Answer True or False

6. True or False: Civil and political rights are classified as first generation rights in the context of human rights.
7. True or False: The Natural Law School argues that promoting market efficiency is essential for achieving justice in legal frameworks.
8. True or False: Catharine MacKinnon's argument suggests that political pressure alone cannot achieve equality for women due to power dynamics.
9. True or False: Law is primarily a product of a sovereign's intent, independent of the cultural context in which it operates.
10. True or False: Article 103 of the UN Charter cannot trump jus cogens norms, which are fundamental principles of international law.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss the relationship between customary law and treaty provisions, focusing on how treaties can influence the development and recognition of customary law.
12. Discuss the concept of 'de facto' organs of the State in international law. How do these entities operate under the direction or control of the State, and what implications does this have for state responsibility?

End of Paper